

Court No. - 37

Case :- WRIT - C No. - 35008 of 2013

Petitioner :- M/S Nawla Ispat Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal, Ankit Kumar Gaur

Counsel for Respondent :- Nripendra Mishra

Hon'ble Sheo Kumar Singh, J.

Hon'ble Brijesh Kumar Srivastava-II, J.

Connect with Writ Petition No.30582 of 2009, M/s Vehina Steels & Alloys Pvt. Ltd. & Anr. Vs. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. and other similar matters by which the demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 has been challenged.

Shri Nripendra Mishra, learned counsel appearing for the respondent Nos.1 and 2 and Shri A.N. Singh appearing for respondent No.3 submits that several writ petitions are pending on the same issue, and are going to be listed for hearing.

Learned counsel for the respondents are allowed three weeks' time to file counter affidavit.

In view of the interim order, as already granted in Writ Petition No.30582 of 2009, it is provided that, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 2.7.2013

Sachdeva

Court No. - 29

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Counsel for Respondent :- Nripendra Mishra, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Learned counsel for the petitioner states that the writ petition has become infructuous.

The writ petition is, accordingly, dismissed as infructuous.

Order Date :- 12.9.2016

AKJ

(Vipin Sinha, J.)

(Tarun Agarwala, J.)